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BILL NO. 1574

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SECTION 1.

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By: Lawson, Provenzano,
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An Act relating to children; amending 10 O.S. 2021, Section 601.6, which relates to the Office of Juvenile System Oversight; providing reference for definition; directing the Office to inspect misfeasance and malfeasance; directing the Office to conduct inspections annually; authorizing the Office to inspect certain privately operated facilities; directing the Office to investigate complaints; authorizing the Office to examine and copy records and budgets; authorizing the Office to interview certain individuals; authorizing the Office to subpoena witnesses and hold hearings; and declaring an emergency.

ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

TION 1. AMENDATORY 10 O.S. 2021, Section 601.6, to read as follows:

tion 601.6. A. For purposes of this section, the term "juvenile justice system and youth service system" shall have the same meaning as the term "juvenile justice system" as defined in Section 600 of this title.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 601.6, is amended to read as follows:

Section 601.6. A. For purposes of this section,
"children and youth service system" shall have the same
it is defined in Section 600 of this title.

SECTION 1. AMENDATORY 10 O.S. 2021, Section 601.6, is amended to read as follows:

Section 601.6. A. For purposes of this section, the term "children and youth service system" shall have the same meaning as it is defined in Section 600 of this title.

Section 601.6. A. For purposes of this section, the term
"children and youth service system" shall have the same meaning as
it is defined in Section 600 of this title.

1 B. The Office of Juvenile System Oversight shall have the
2 responsibility of inspecting and investigating ~~and reporting~~
3 misfeasance and malfeasance within the children and youth service
4 system, ~~inquiring into areas of concern, investigating complaints~~
5 ~~filed with the Office of Juvenile System Oversight, and performing~~
6 ~~issue-specific systemic monitoring~~ as directed by the Oklahoma
7 Commission on Children and Youth ~~of the children and youth service~~
8 ~~system~~ to ascertain compliance with established responsibilities.

9 ~~It shall be the duty of the~~

10 C. ~~The Office of Juvenile System Oversight to~~ shall conduct not
11 less than one but not more than two regular, periodic, unannounced
12 inspections of state-operated children's institutions and facilities
13 ~~and to review the reports of the inspections of the State Fire~~
14 ~~Marshal and the Department of Health and any agencies which accredit~~
15 ~~such institutions and facilities~~ annually. The Office is further
16 authorized to inspect privately operated children's institutions and
17 facilities that receive state or federal funding on a periodic basis
18 or as needed.

19 D. The Office shall investigate complaints filed with the
20 Office regarding the children and youth service system.

21 ~~B.~~ E. The Office of Juvenile System Oversight shall have the
22 authority to:

23 1. ~~Have the authority to examine and copy all records and~~
24 ~~budgets pertaining to the children and youth service system and to~~

1 ~~interview the residents of such facilities and shall have access to~~
2 Access all facilities within the children and youth service system
3 for the purpose of conducting ~~systemic oversight~~ inspections and
4 ~~complaint~~ investigations;

5 2. ~~Have the authority to subpoena witnesses and hold public~~
6 ~~hearings~~ Examine and copy all records and budgets pertaining to the
7 children and youth service system and to review inspection reports
8 of the State Fire Marshal, State Department of Health, and any other
9 agency that accredits such institutions and facilities;

10 3. Interview the residents of institutions and facilities
11 within the children and youth service system;

12 4. Subpoena witnesses and hold public hearings;

13 5. Establish, in accordance with the Dispute Resolution Act,
14 Sections 1801 through 1813 of Title 12 of the Oklahoma Statutes, a
15 voluntary program for foster parents to mediate complaints
16 concerning the rights of foster parents, as provided for in Section
17 1-9-119 of Title 10A of the Oklahoma Statutes, that relate to
18 certain actions, inactions or decisions of the Department of Human
19 Services, the Department of Juvenile Justice, or child-placing
20 agencies that may adversely affect the safety and well-being of
21 children in the custody of the state;

22 4. 6. Receive any complaint alleging that an employee of the
23 Department of Human Services or a child-placing agency has
24 threatened a foster parent with removal of a child from the foster

1 parent, harassed a foster parent, or refused to place a child in a
2 licensed or certified foster home, or disrupted a child placement as
3 retaliation or discrimination towards a foster parent who has:

- 4 a. filed a grievance pursuant to Section 1-9-120 of Title
5 10A of the Oklahoma Statutes,
- 6 b. provided information to any state official or
7 Department employee, or
- 8 c. testified, assisted, or otherwise participated in an
9 investigation, proceeding, or hearing against the
10 Department or child-placing agency.

11 The Office of Juvenile System Oversight shall forward the
12 complaints to the Office of Client Advocacy for investigation
13 pursuant to subsection D of Section 1-9-112 of Title 10A of the
14 Oklahoma Statutes. The Office of Juvenile System Oversight shall
15 work with the Office of Client Advocacy to ensure the complaints are
16 investigated and resolved in accordance with the grievance
17 procedures provided in Section 1-9-120 of Title 10A of the Oklahoma
18 Statutes. The provisions of this paragraph shall not apply to any
19 complaint by a foster parent regarding the result of a criminal,
20 administrative, or civil proceeding for a violation of any law,
21 rule, or contract provision by that foster parent, or the action
22 taken by the Department or a child-placing agency in conformity with
23 the result of any such proceeding;

1 ~~5.~~ 7. Issue reports to the Governor, Speaker of the House of
2 Representatives, President Pro Tempore of the Senate, Chief Justice
3 of the Supreme Court of the State of Oklahoma, any appropriate
4 prosecutorial agency, the director of the agency under
5 consideration, and other persons as necessary and appropriate; and

6 ~~6.~~ 8. Provide recommendations to the Oklahoma Commission on
7 Children and Youth on or before May 1 of each year.

8 ~~6.~~ F. The Office of Juvenile System Oversight shall not release
9 information that would identify a person who makes a complaint to
10 the Office, unless a court of competent jurisdiction orders release
11 of the information for good cause shown.

12 SECTION 2. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
17 April 7, 2025 - DO PASS
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